Biospringer by Lesaffre

Invoice

LESAFFRE SINGAPORE PTE LTD
23 Serangoon North Avenue 5
BTC Centre #06-02
Singapore 554530
wwww.lesaffre.com

E

Consignee's address:
TOYOTA TSUSHO (Thailand) CO., LTD.
607 Asoke-Dindaeng Road,Kwaeng Dindaeng,
10400 Bangkok
THAILAND

Customer: 5033082
Your order ref: RB946LSG014
Our order ref: 25933775 /

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Invoice no. / Date: 93265872 / 04.07.2024
Currency: EUR N
Payment: Within 150 days due net
Incoterms 2020: CIF - Port Bangkok
Expected payment deadline: 01/12/2024

Invoicing address:
TOYOTA TSUSHO (Thailand) CO., LTD.
607 Asoke-Dindaeng Road,Kwaeng Dindaeng,
10400 Bangkok
THAILAND

Description of goods	Quantity	Unit price (EUR)	GST %	Amount EUR	Net weight (kg)	Gross weight (kg)
000010 YEAST EXTRACT POWDER SPRINGER 2012 / 20 - MG - L AF HS code : 210690924000B Declaration: YEAST EXTRACT Country of origin : FR H	1.920,00 L	8,9 O	0,00	17.088,00 P	1.920,00	2.027,52
Total weight (kg) M					**1.920,00**	**2.027,52**
Total GST 0% (EUR)				**0,00**		
Total amount (EUR)				**17.088,00**		

Remarks:
COMMISSION INCLUDED IN THIS INVOICE

For penalty fees and compensation for collection costs due to delayed payment, please refer to our general conditions of sales overleaf.

PO#RB946LSG014

Bank Details:

Bank Name:	The Hongkong and Shanghai Banking Corporation
Account Name:	Lesaffre Singapore Pte Ltd
Account No. :	052-488038-001 (SGD) 260-149901-178 (USD) 260-149901-179 (EUR)
Branch Address:	21 Collyer Quay, HSBC Building Level 1,Singapore 049320
Bank Code:	7232
Swift/BIC:	HSBCSGSG

CERTIFIED CONFORM FOR LESAFFRE SINGAPORE

GST Registration No: 201530128D
See our general conditions overleaf

LESAFFRE SINGAPORE PTE. LTD. - GENERAL TERMS AND CONDITIONS OF SALE

1. APPLICABLE TERMS AND CONDITIONS

These terms and conditions of sale (**"GTC"**) apply to all sales of goods (**"Products"**) by **Lesaffre Singapore PTE. LTD.**, a company incorporated under the laws of Singapore, whose registered office is at 23 Serangoon North Avenue 5,#06-02, BTC Centre, Singapore 554530, registered under number 201530128D (**"LS"**), to the purchaser (**"Buyer"**), which agrees to be bound by the GTC. No termsof Buyer or any other agreement with LS, deviating from the GTC, shall be effective unless agreed in writing by an authorised representative of LS. Each individual purchase contract entered into between LS and Buyer shall be hereafter referred to as the **"Sale Contract"**.

2. ACCEPTANCE OF TERMS

2.1. No order submitted by Buyer shall be deemed to be accepted by LS, and no Sale Contract shall accordingly be formed, unless and until confirmed in writing by LS's authorized representative.

2.2. Unless otherwise indicated by LS, quotations are valid for a period of 30 calendar days from the date of the quotation and may be withdrawn or altered by LS if Buyer does not place any written order within such time period.

3. PRODUCTS

3.1. Buyer must ensure the accuracy of (a) the terms of any order submitted to LS, (b) any necessary information provided to LS relating to the Products within sufficient time to enable LS to perform the relevant order in accordance with its terms, and (c) any applicable specification produced by LS for Buyer based on information provided by Buyer.

3.2. The quantity, quality and description of and any specification for the Products are set out in LS's quotation (if accepted by Buyer) or Buyer's order (if accepted by LS) but in either case shall be subject always to these GTC.

4. DELIVERY/SHIPPING TERMS

4.1. Unless otherwise agreed, delivery terms are Ex Works (Incoterms 2020) the facility from which the Products are initially shipped following the sale. LS will schedule delivery in accordance with its standard lead time unless Buyer's order requests a later delivery date, or LS agrees in writing to a separate estimated delivery date. If LS prepays transportation or insurance charges, Buyer will reimburse LS upon receipt of an invoice for those charges. LS reserves the right to quote additional charges for any special routing, packing, labelling, handling or insurance requested by Buyer.

4.2. In any event, any delivery dates, requested or agreed, are approximate only and LS shall not be liable for any failure to comply with a delivery date.

4.3. Buyer shall examine the Products upon delivery. Buyer must also take all necessary measures to safeguard Buyer's and LS's rights against the transporter, notably by expressing all reservations, and where necessary by notifying all protestations to the transporter, in the forms and within the time periods required under applicable law. Without prejudice to the preceding provisions, after a 10-day period following delivery, Buyer is deemed to have accepted the Products, if not previously accepted.

4.4. LS may subcontract all or part of its obligations under the Sale Contract, without Buyer's prior approval.

5.RISK AND TITLE

5.1. Risk of loss and damage to Products shall pass to Buyer in accordance with the applicable Incoterm.

5.2. LS retains the ownership of the Products until Buyer has paid their price in full. "Payment" is understood to mean the effective receipt of the funds by LS of the principal and its incidentals.

6. PRICE AND PAYMENT TERMS

6.1. Buyer shall pay the price of the Products as agreed in the Sale Contract ("Price"). Unless otherwise agreed, all Prices are (i) defined in Euros excluding VAT, (ii) may be increased by all taxes and duties that may apply, and (iii) based on Ex Works (Incoterms 2020) the facility from which the Products are initially shipped following the sale. All Buyer's rules or internal procedures for handling orders and invoices are not enforceable against LS to delay any payment.

6.2. LS reserves the right to reject Buyer's orders, in particular if LS does not have sufficient capacity to fulfil such orders and/or if Buyer's order falls below minimum order sizes established by LS, in its sole discretion.

6.3. Buyer shall pay all sums owed by LS in accordance with the provisions set out in the Sale Contract. In the absence of express payment terms, Buyer shall pay immediately the invoices issued by LS pursuant to the Sale Contract by wire transfer to the bank account designated from time to time by LS, unless otherwise agreed.

6.4. No discount for early payment will be granted.

6.5. If Buyer fails to pay any sums provided for in the Sale Contract when due, without prejudice to any other rights LS may have, LS (1) shall be entitled to (1) charge interest on the outstanding amount at the annual rate of ten (10) per cent above the current 3 months SIBOR Singapore Inter-bank Offered Rate, until full payment is made and without prejudice of any further rights and damages that LS could claim for; and (2) may suspend or terminate the Sale Contract pursuant to clause 8 of the GTC. In such case, Buyer agrees to reimburse and pay LS for all expenses, costs, and attorney's fees incurred by LS in enforcing any of its rights hereunder and/or collecting any past due sums.

6.6. If LS has legitimate reasons to consider that the creditworthiness or future performance of Buyer is/will be impaired or unsatisfactory, LS may (i) refuse any new order placed by Buyer, (ii) suspend deliveries of Products, (iii) require prepayment by wire transfer at least 2 business days prior to a scheduled shipment of Product, and/or (iv) require an appropriate security at least 2 business days prior to a scheduled shipment of Products.

7. EXCUSABLE DELAY

LS will not be liable to Buyer for any failure to meet its obligations due to any force majeure event. A "force majeure event" means a force majeure event as defined under the law governing the Sale Contract as well as an event beyond the reasonable control of a Party including but not limited to war, fire, storm, flood, drought, earthquake, explosion, accident, sabotage, riots, strikes, lockouts, equipment or machinery failure, raw material or equipment shortages, interruption of power or water supply, transportation embargoes or delays, or regulations or injunctions of central or local government branches or agencies thereof.

8. SUSPENSION AND TERMINATION

8.1. Either party may terminate the Sale Contract if the other party commits a material breach of any of its obligations under the Sale Contract, and fails to remedy such breach within a period of 14 calendar days after being notified in writing to do so, without prejudice to any other rights the terminating party may have. No claims for indemnity or compensation can be lodged by reason of termination of the Sale Contract pursuant to its terms, save where these claims are based on breach of the Sale Contract by one of the parties.

8.2. LS may, at its option, terminate or suspend the Sale Contract if Buyer fails to pay any sums provided for in the Sale Contract when due, and fails to remedy such breach within 8 business days after being notified in writing to do so.

9. CANCELLATION AND RETURNS

Buyer cannot cancel any order of Products without LS's express, written consent. Any cancellation so authorized shall be subject to a cancellation charge of 15 % at LS's sole discretion. The amount of credit, if any, allowed to Buyer for returned Products shall be at LS's sole discretion.

10. WARRANTIES AND LIABILITY

LS warrants the Products it sells only against non conformity of the Products with the specifications agreed under a Sale Contract (a "defect"), subject to evidence of defect, and except that in no event (i) shall such warranty cover defects due to tampering or improper use of the Products sold, nor (ii) shall LS be liable for damages caused by unauthorized modifications of Products or by the combination of Products with other products. In any event, including in case of defective Products (including under product liability regulations, where permitted) and under any warranties granted under a Sale Contract, (1) LS shall not be liable for: (1a) indirect loss; (1b) loss arising from business interruption; (1c) loss of profits; (1d) loss of revenue; (1e) loss of opportunity or (1h) any other immaterial loss, and (2) to the extent LS is held liable under a Sale Contract, such liability will be limited to the value of the Products in relation to which the liability claim has arisen.

11. GOVERNING LAW AND COMPETENT COURTS

The Sale Contract, and all related non contractual obligations, will be construed according to the laws of Singapore. If Buyer's registered office is located in Singapore, the following provisions apply: If any dispute (including any non-contractual dispute) arises out of or in connection with the Sale Contract and the related commercial relationship, the Singapore Courts shall have exclusive jurisdiction to settle such dispute. If Buyer's registered office is not located in Singapore, the following provisions apply: Any dispute arising out of or in connection with this contract, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration administered by the Singapore International Arbitration Centre ("SIAC") in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC Rules") for the time being in force, which rules are deemed to be incorporated by reference in this clause. The arbitration shall be conducted in accordance with the Expedited Procedure under the SIAC Rules. The Tribunal shall consist of one (1) arbitrator. The seat of the ar bitration shall be Singapore. The language of the arbitration shall be English.

12. MISCELLANEOUS

12.1. LS may assign all or part of its rights and obligations under a Sale Contract without Buyer's prior approval. Any change to these GTC requires explicit wording referring to the relevant provisions of the GTC that are being changed. If any term of the Sale Contract shall, to any extent, be invalid or unenforceable, the remainder of the Sale Contract shall not be affected thereby. The parties shall use their best efforts to replace any invalid or enforceable provision with a new provision reflecting the original intention of the parties as closely as possible. No waiver of any term of the Sale Contract, whether by conduct or otherwise shall be deemed as a further waiver of any such term or as a waiver of any other term of the Sale Contract. 12.2. Buyer acknowledges that all information relating to LS's business or that of any LS group company (including the existence and terms of any order, and any technical information), which is not public knowledge, is confidential. Buyer shall not disclose such confidential information to any third party, nor use it for any other purpose than fulfilling an order. 12.3. These GTC shall not confer any benefit or right of action on any third party and the provisions of the Contract Act (Rights of Thirds Parties), Cap. 53B and any subsequent or supplementary or modifying legislation are hereby excluded to the fullest extent possible by law.